

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

IAN MILLS, *Claimant*

v.

CROWLEY LOGISTICS, INC., *Respondent*

FORMAL DOCKET NO.
1995(F)

May 23, 2024

CLAIMANT’S RESPONSE TO
ORDER REGARDING COMPLETION OF THE EVIDENTIARY RECORD

On April 24, 2024, the Administrative Law Judge ordered the Parties to supplement the evidentiary record. The Respondent was ordered to answer, and provide supplementary evidence for, questions numbered A-H. The Claimant was ordered to answer, and provide supplementary evidence for, questions I-M.

The Claimant now provides the requested answers to, and supplementary evidence for, questions I-M. A Table of Contents on the next page summarizes the supplementary evidence exhibits provided – all in 1 PDF (save for 1 MOV file) along with bates numbered pages.

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Judge's Order (numbering as per Order served April 24, 2024)	Supplementary Evidence	PDF page
I. Provide the described video evidence of the Container arriving without the clip-on generator. Complaint at 3.	• Video • Photo	CX-1 CX-2
J. Provide a statement from the supplier of the clip-on generator, in support of the assertion that “the President of the supplier (MyshippingContainers.com) also verbally confirmed to the Claimant that the generator was collected by the Respondent’s truck driver that day.” Complaint at 2. The statement must be verified in accordance with 46 C.F.R. § 502.6(c).	• Supplier Letter	CX-3-4
K. Is the relevant supplier’s name “My Shipping Containers” or “Gold Coast Repairs”? Please explain the role of each of these entities with respect to the generator.	• Website screenshot	CX-5
L. Regarding the equipment interchange document with heading “Gold Coast Repairs” and dated 11/19 (Opposition, Attachment 2, page 4), to whom does “Customer: Brandon” refer?	Explanation provided	N/A
M. Regarding Invoice #1714 (Opposition, Attachment 2, page 3), provide email or other documentation showing that Crowley received Invoice #1714, on or about November 9, 2021, as stated in Opposition at 3 (“Along with the invoices for 98 items that were to be shipped, the Claimant provided the Respondent with the invoice for the generator on November 9, 2021”)?	• Email	CX-6-10

I. Provide the described video evidence of the Container arriving without the clip-on generator. Complaint at 3.

Please find the video evidence attached – shared by way of MOV file (referenced via **Supplementary Evidence PDF: Page CX-1**). This video shows no clip on generator on the container when being offloaded.

In addition, I attach a photo the Claimant took the very next day (**Supplementary Evidence PDF: Page CX-2**) of the back panel of container, where the clip on generator should have been clipped on, but wasn't.

Finally, Attachment number 5 to my Claim served on June 6, 2023, illustrates what the clip on generator (Carrier 69RG15-130W-01) would have looked like if it had been present.

J. Provide a statement from the supplier of the clip-on generator, in support of the assertion that “the President of the supplier (MyshippingContainers.com) also verbally confirmed to the Claimant that the generator was collected by the Respondent’s truck driver that day.” Complaint at 2. The statement must be verified in accordance with 46 C.F.R. § 502.6(c).

Copy of signed letter from Brandon Mason, the President of the supplier, attached and verified in accordance with 46 C.F.R. § 502.6(c) along with its email transmission to the Claimant (**Supplementary Evidence PDF: Page CX-3-4**).

In addition to this signed letter and the signed interchange document previously provided (Attachment 3 to the Claim), as noted by the Judge’s question above, I, the Claimant, confirm hereby again (supported by the signed verification at the end of this

document) that Brandon Mason also confirmed to me on many occasions that both the container and clip on generator had been successfully collected together.

K. Is the relevant supplier's name "My Shipping Containers" or "Gold Coast Repairs"? Please explain the role of each of these entities with respect to the generator.

The supplier of the 40 foot Container and generator is My Shipping Containers, which is a company that sells portable storage and which sold the items to the Claimant.

The supplier's letter confirms that My Shipping Containers operates out of a facility owned by Gold Coast Repairs. Gold Coast Repairs carries out safety inspections and works closely with My Shipping Containers (see answer to next question below). The facility is located at 13850 NW 105th Ave, Miami, FL 33018, which is the same address as on the Gold Coast Repairs interchange sheet and the location of My Shipping Containers as per their website (screenshot of website as **Supplementary Evidence PDF: Page CX-5**).

L. Regarding the equipment interchange document with heading "Gold Coast Repairs" and dated 11/19 (Opposition, Attachment 2, page 4), to whom does "Customer: Brandon" refer?

Brandon refers to Brandon Mason, the President of My Shipping Containers (the supplier of the container and clip on generator). Brandon informed me, the Claimant, that the container would be safety inspected before being released and he had that carried out by Gold Coast Repairs on-site.

Once the container had passed the inspection, Brandon confirmed to me, the Claimant, that all the items I had bought (container, generator and transformer) were

ready for collection. As My Shipping Containers and Gold Coast Repairs work extremely closely together and operate from the same location and as Gold Coast Repairs owns the facility, the interchange document was issued in their name.

M. Regarding Invoice #1714 (Opposition, Attachment 2, page 3), provide email or other documentation showing that Crowley received Invoice #1714, on or about November 9, 2021, as stated in Opposition at 3 (“Along with the invoices for 98 items that were to be shipped, the Claimant provided the Respondent with the invoice for the generator on November 9, 2021”)?

Email from the Claimant to Respondent’s representative along with attachments attached (**Supplementary Evidence PDF: Page CX-6-10**) which included Invoice Number #1714 for the generator, evidencing that it was sent to the Respondent on November 9, 2021 as part of the items for collection. That invoice provided details of the clip on generator. The interchange document and supplier’s letter confirm the container along with clip on generator were then collected.

LIST OF ATTACHMENTS:

Video (**Supplementary Evidence PDF: Page CX-1 – MOV File attachment**)

Photo (**Supplementary Evidence PDF: Page CX-2**)

Supplier Letter (**Supplementary Evidence PDF: Page CX-3-4**)

Website screenshot (**Supplementary Evidence PDF: Page CX-5**)

Email (**Supplementary Evidence PDF: Page CX-6-10**)

(Date) May 23, 2024

(Claimant's signature) *Ian W. Mills*

(Claimant's address) 47B Millennium Heights, Welches, Barbados

(Agent or attorney) N/A

VERIFICATION

I verify under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Ian W. Mills

May 23, 2024

Ian Mills

Certificate of Service

I hereby certify that I have this day served the foregoing document upon all parties of record in this proceeding by emailing a copy to each such person in sufficient time to reach such person on the date the document is due to be filed with the Commission.

May 23, 2024

Ian W. Mills

Ian Mills

47B Millennium Heights

Welches, Barbados